

PARTIES: REAL TECH LLC · EACH RECIPIENT **GOVERNING LAW:** ARIZONA
VENUE: MARICOPA COUNTY, AZ **TERM:** 3 YEARS **NON-SOLICIT:** 12 MONTHS

Mutual Non-Disclosure Agreement

Effective Date: ____ (“Effective Date”)

This Mutual Non-Disclosure Agreement (the “**Agreement**”) is entered into as of the Effective Date by and between:

Real Tech LLC, an Arizona limited liability company, with a principal place of business in Arizona (the “**Company**”); and

The individual identified in the signature block below (the “**Recipient**”), each a “**Party**” and collectively the “**Parties**”.

The Parties may exchange Confidential Information (as defined below) for the purpose of evaluating, planning, and discussing a potential founding-team relationship with the Company, including without limitation business strategy, product roadmap, financial projections, partner relationships, intellectual property, recruiting, and capital structure (collectively, the “**Purpose**”).

In consideration of the mutual covenants below and other good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows.

1. Definition of Confidential Information

“**Confidential Information**” means any non-public information disclosed by one Party (the “**Disclosing Party**”) to the other Party (the “**Receiving Party**”) in connection with the Purpose, whether disclosed orally, visually, in writing, electronically, or in any other form, that is identified as confidential at the time of disclosure or that a reasonable person would recognize as confidential under the circumstances.

Confidential Information includes, without limitation:

- a. Business plans, product roadmaps, market analyses, and go-to-market strategies, including but not limited to those of the Company’s affiliated brands and products: Real Tech Consulting, Real Tech GTM, Rovian.ai, Wedding Planner AI, DealPayment.com, Channel Partner Portal, Cannabis HighTide, edgenote.ai, Kith, Baby Tracker, Rehabit, and the Life Events Suite;
- b. Financial information, including projections, revenue, expenses, capitalization, and funding plans;

- c. Identities of, and the substance of any communications with, current, prospective, or pipeline partners, customers, vendors, investors, advisors, and recruits;
 - d. Patent applications, including any pending or future patent applications related to the Company's products and technologies (including but not limited to the DealPayment Token / ELT escrow technology), and all underlying inventions, methods, designs, and trade secrets;
 - e. Source code, software architecture, technical documentation, datasets, and AI model designs;
 - f. Personnel matters, including discussions with prospective founders, executives, and employees, equity allocations, and compensation structures;
 - g. The existence and terms of this Agreement and the fact that the Parties are in discussions; and
 - h. Any other information that is non-public and would, if disclosed, reasonably be expected to harm the Disclosing Party's competitive position, relationships, or legitimate business interests.
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2. Exclusions

Confidential Information **does not include** information that the Receiving Party can demonstrate by contemporaneous written records:

- a. Was lawfully in the Receiving Party's possession without obligation of confidentiality before disclosure by the Disclosing Party;
 - b. Is or becomes generally available to the public through no breach of this Agreement by the Receiving Party;
 - c. Was lawfully received by the Receiving Party from a third party who had the right to disclose it without restriction; or
 - d. Was independently developed by the Receiving Party without use of or reference to any Confidential Information.
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3. Permitted Use; Standard of Care

- a. **Use restriction.** The Receiving Party will use Confidential Information solely for the Purpose and not for any other purpose, including without limitation any commercial or competitive purpose adverse to the Disclosing Party.
- b. **Disclosure restriction.** The Receiving Party will not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party, except to the Receiving Party's attorneys, accountants, and other professional advisors who have a need to know for the Purpose and who are

bound by written or professional obligations of confidentiality at least as protective as those in this Agreement.

c. **Standard of care.** The Receiving Party will protect Confidential Information using at least the same degree of care it uses to protect its own information of like nature, but in no event less than reasonable care.

d. **No reverse engineering.** The Receiving Party will not reverse engineer, decompile, or disassemble any software, hardware, or technology disclosed under this Agreement.

4. Term and Termination

a. **Term of Agreement.** This Agreement begins on the Effective Date and continues for a period of **three (3) years** thereafter, unless earlier terminated by mutual written agreement of the Parties.

b. **Surviving confidentiality obligations.** The Receiving Party's confidentiality and use obligations with respect to Confidential Information disclosed during the Term will continue for **three (3) years from the date of disclosure** of each piece of Confidential Information.

c. **Trade secrets and patent-pending technology.** Notwithstanding subsection (b), the Receiving Party's confidentiality and use obligations with respect to (i) trade secrets and (ii) any patent-pending technology of the Disclosing Party (including the DealPayment Token / ELT escrow technology) will continue **for so long as such information remains a trade secret or such patent application remains pending or undisclosed under applicable law**.

5. Intellectual Property; No License

a. **No transfer.** No license or right under any patent, copyright, trademark, trade secret, or other intellectual property right of either Party is granted or implied by this Agreement or by any disclosure of Confidential Information hereunder. All Confidential Information remains the property of the Disclosing Party.

b. **Patent prosecution preserved.** Nothing in this Agreement limits the Disclosing Party's right to file, prosecute, or maintain any patent application based on its own inventions, regardless of any disclosure to the Receiving Party.

c. **Feedback.** Any suggestions, ideas, or feedback voluntarily provided by the Receiving Party regarding the Disclosing Party's business or products may be used by the Disclosing Party without restriction or compensation to the Receiving Party, provided the Disclosing Party does not identify the Receiving Party as the source without consent.

6. Mutual Non-Solicitation

a. **Period.** For a period of **twelve (12) months** following the Effective Date, neither Party will, directly or indirectly:

- i. Solicit for hire, recruit, or attempt to hire any employee, contractor, or named recruit of the other Party who became known to the Receiving Party as a direct result of activities under this Agreement; or
- ii. Solicit for business any customer, partner, investor, or named pipeline contact of the other Party that the Receiving Party first learned about in the course of activities under this Agreement.

b. **Carve-outs.** Subsection (a) does not restrict:

- i. General-purpose advertising or job postings not directed at any specific person of the other Party;
- ii. Hiring any individual who responds to such general-purpose advertising without targeted solicitation;
- iii. Continuing existing business relationships in place before the Effective Date; or
- iv. Pursuing any business opportunity that the Receiving Party can demonstrate (by contemporaneous written records) it was independently pursuing before the Effective Date.

c. **No non-compete.** This Agreement does not contain, and is not intended to operate as, any non-competition restriction. Each Party remains free to compete with the other Party in any market, subject only to the confidentiality and non-solicit obligations expressly set forth above.

7. Third-Party Confidential Information (Critical Clause)

a. **No current-employer information.** Each Party expressly represents and warrants that:

- i. No Party is required to disclose, and no Party will disclose, any confidential information, trade secrets, or proprietary materials belonging to any current or former employer of such Party (including, without limitation, SmartRent, Inc. and its affiliates), under or in connection with this Agreement or the Purpose;
- ii. No Party will use any such third-party confidential information in furtherance of the Purpose; and
- iii. The discussions and disclosures contemplated by this Agreement may proceed without breach of any obligation owed by any Party to any third party, including any current employer.

b. **Acknowledgement.** The Parties acknowledge that several individuals associated with the Company are concurrently employed by SmartRent, Inc. or its affiliates. The Parties expressly intend that the Purpose be pursued in a manner that respects each such individual's existing employment obligations and protects against any inadvertent breach of any such obligation.

8. Compelled Disclosure

If the Receiving Party is required by law, subpoena, court order, or other legal process to disclose Confidential Information, the Receiving Party will, to the extent legally permitted: (a) promptly notify the Disclosing Party in writing so that the Disclosing Party may seek a protective order or other appropriate remedy; (b) cooperate with the Disclosing Party's reasonable efforts to obtain such protective order; and (c) disclose only that portion of the Confidential Information legally required to be disclosed.

9. Return or Destruction

Upon written request of the Disclosing Party or upon termination of this Agreement, the Receiving Party will, at the Disclosing Party's election: (a) return all Confidential Information (and all copies, extracts, and analyses thereof) to the Disclosing Party; or (b) destroy all such Confidential Information and certify such destruction in writing. The Receiving Party may retain one archival copy of Confidential Information solely to comply with legal, regulatory, or recordkeeping obligations, which copy will remain subject to the confidentiality obligations of this Agreement until destroyed or returned.

10. No Warranty

ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS." NEITHER PARTY MAKES ANY WARRANTY, EXPRESS OR IMPLIED, REGARDING THE ACCURACY OR COMPLETENESS OF ANY CONFIDENTIAL INFORMATION DISCLOSED HEREUNDER. NOTHING IN THIS AGREEMENT OBLIGATES EITHER PARTY TO DISCLOSE ANY PARTICULAR INFORMATION OR TO ENTER INTO ANY FURTHER AGREEMENT OF ANY KIND.

11. Remedies

The Parties acknowledge that money damages may be inadequate to remedy a breach of this Agreement and that the Disclosing Party may, in addition to all other remedies available at law or in equity, seek **injunctive relief, specific performance, and other equitable remedies** without the requirement of posting a bond. The prevailing Party in any action to enforce this Agreement is entitled to recover its reasonable attorneys' fees and costs.

12. Governing Law; Venue

This Agreement is governed by, and will be construed in accordance with, the laws of the **State of Arizona**, without regard to its conflict-of-laws principles. Any action or proceeding arising out of or relating to this Agreement will be brought exclusively in the state or federal courts located in **Maricopa County, Arizona**, and each Party irrevocably consents to the personal jurisdiction and venue of such courts.

13. General Provisions

- a. **Entire agreement.** This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior or contemporaneous agreements, understandings, or representations.
 - b. **Amendment.** No amendment is effective unless in writing and signed by both Parties.
 - c. **Waiver.** No failure or delay in exercising any right under this Agreement constitutes a waiver of that right. Any waiver must be in writing and signed by the waiving Party.
 - d. **Severability.** If any provision of this Agreement is held unenforceable, the remaining provisions remain in full force and effect, and the unenforceable provision will be modified to the minimum extent necessary to make it enforceable.
 - e. **Assignment.** Neither Party may assign this Agreement without the prior written consent of the other Party, except that the Company may assign this Agreement to a successor in connection with a merger, acquisition, reorganization, or sale of substantially all of its assets, in which case the Recipient may terminate this Agreement upon written notice within thirty (30) days of such assignment.
 - f. **Counterparts; electronic signatures.** This Agreement may be executed in counterparts, each of which is deemed an original and all of which together constitute one agreement. Signatures transmitted by email, PDF, or established electronic-signature platform (Adobe Acrobat, DocuSign, HelloSign, and equivalents) have the same force and effect as original ink signatures.
 - g. **Notices.** All notices under this Agreement must be in writing and delivered by email to the address provided in the signature block, by hand delivery, or by nationally recognized overnight courier.
 - h. **No partnership.** Nothing in this Agreement creates any partnership, joint venture, agency, or employment relationship between the Parties.
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14. Signature Blocks

The Parties execute this Agreement as of the Effective Date set forth above.

REAL TECH LLC

Signature: _____

Name: **Johnathan Sorisho**Title: **Founder / Authorized Signatory**

Date: _____

Email: _____

RECIPIENT (ONE SIGNATURE BLOCK PER COFOUNDER)**Halim Khaldi — Co-founder, Engineering**

Signature: _____

Name: **Halim Khaldi**

Date: _____

Email: _____

Tim Elias — Co-founder

Signature: _____

Name: **Tim Elias**

Date: _____

Email: _____

Justin Lesko — Founding Executive (Recruit)

Signature: _____

Name: **Justin Lesko**

Date: _____

Email: _____

Braeden Scheer — Founding Executive (Recruit)

Signature: _____

Name: **Braeden Scheer**

Date: _____

Email: _____

Wil Gomez (Wilmann Gómez) — Founding Executive (Recruit)

Signature: _____

Name: **Wil Gomez (Wilmann Gómez)**

Date: _____

Email: _____

Template — review by qualified counsel before execution. Not legal advice.

This document is a starting template based on common founder-NDA patterns. It must be reviewed by Tim Elias's legal contacts, or any other qualified attorney admitted in the relevant jurisdiction, before any party signs. See [README.md](#) for the full disclaimer and signing workflow.